

24LBCV02092 24LBCV02092

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-15

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C09%2F15%2F2026

Source SHA-256: f8c4349d5681294a7de42f6860c9b31557967d4f035afb65e5bb49097c081e86

Case Number: 24LBCV02092 Hearing Date: September 15, 2026 Dept: S27

Plaintiffs filed a request for dismissal of this action on 2/18/26 and served it the same day. The parties agree that the due date for filing a memorandum of costs was 3/09/26, but Defendant did not file a memorandum of costs until the following day, 3/10/26.

Plaintiffs move to strike the entire tax bill as untimely filed.

Pursuant to *Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924, 929, failure to timely file a memorandum of costs may result in waiver of costs.

Defendant argues it should be granted CCP §473(b) relief from its failure to timely file its memorandum. Defendant does not provide on point authority in this regard. The Court researched this issue and found *Douglas v. Willis* (1994) 27 Cal.App.4th 287, which held that the discretionary provision of §473(b) applies when a party fails to file a timely memorandum of costs.

The appeal, however, was from a §473(b) motion for relief. There is nothing in the ruling that suggests this request can be made by way of opposition papers. Notably, this Court routinely refuses to award Plaintiffs' attorneys' office, Strategic Legal Partners, §473(b) relief when the firm seeks such relief in opposition papers, and the Court will not allow Defense Counsel to achieve a different result.

The motion to strike costs is granted on the ground that Defendant failed to timely file its memorandum of costs. The ruling is without prejudice to Defendant's right to make a §473(b) motion if it has grounds to do so.

Plaintiffs are ordered to give notice.